



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

MAY 17 2005

Mr. Joe Goldman
President
Federal Industries Corporation
P.O. Box 47099
Plymouth, MN 55447

Dear Mr. Goldman:

This is in response to your January 28, 2005 application for exemption (14143-N) requesting authorization for the manufacture, marking, sale and use of corrugated fiberboard boxes as the outer packaging for lab pack applications.

In accordance with 49 CFR 107.113(e) and (g), your application is denied for the following reason(s):

Your application does not demonstrate an equivalent level of safety to that required by the Hazardous Materials Regulations. Specifically, with a reduced structural integrity due to the 350 lb burst strength, the outer package for lab packs as proposed in your application, does not provide an equivalent level of durability and puncture resistance as the required steel, plastic or fiber drum outer packaging. In addition, the fiberboard boxes in your application are not equivalent to the boxes authorized under similar exemptions, such as DOT-E 10791, which are required to be fabricated from 500 lb burst strength board.

If you have any questions, please do not hesitate to contact Donald Burger at (202) 366-4545.

Sincerely,

for
Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety